

23STCV23854 23STCV23854

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-08-28

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Plaintiff's motion for leave to file a Fourth Amended Complaint ("4th AC") is denied in part without prejudice and granted in part.

The motion is denied to the extent that it seeks to add the Estate of Naum Neil Shekhter as a Defendant in this action and to assert claims against the Estate. Naum Neil Shekhter died in November 2024. No probate proceeding has been initiated by Plaintiff, or anyone else for that matter, to establish the Estate of Naum Neil Shekhter and appoint a personal representative of the Estate. Plaintiff's proposed 4thAC thus seeks to add as a Defendant a thing that does not exist. In disposing of Plaintiff's motion, the Court need not address whether any claim Plaintiff has against the Estate of Naum Neil Shekhter, were an Estate to be established, would be time-barred.

The motion is granted to the extent that it seeks to add new parties to the action (other than the Estate of Naum Neil Shekhter) and claims against those parties. The Court discerns no prejudice to the existing Defendants that would compel the Court to deny this aspect of the motion. The existing Defendants argue that Plaintiff's claims against these new parties are precluded by a Delaware court decision. Maybe so. But whether that is actually the case should be litigated in a demurrer or summary adjudication motion. The possibility of preclusion is not grounds, in the Court's view, to deny the Plaintiff's motion

Plaintiff shall file a 4thAC in accordance with the Court's decision on Plaintiff's motion within 14 days of this order.